

ORDINANCE NO. _____

ORDINANCE: "AMENDING VARIOUS SECTIONS WITHIN CHAPTER 5.68, BODY ART ESTABLISHMENTS AND OPERATIONS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CHEYENNE CITY CODE TO PROVIDE FOR A BODY ART SPECIAL EVENT BUSINESS LICENSE AND REQUIREMENTS FOR PARTICIPATING BODY ARTISTS AND GUEST BODY ARTISTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections within Chapter 5.68, Body Art Establishments and Operations, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code are hereby amended as set forth in this ordinance to provide for a body art special event business license and requirements for participating body artists and guest body artists. Existing sections contained within Chapter 5.68 not set forth within this ordinance remain unchanged.

5.68.020 Definitions.

"GUEST ARTIST" MEANS A BODY ARTIST WHO OBTAINS A GUEST ARTIST PERMIT ISSUED BY THE CITY-COUNTY HEALTH OFFICER TO PROVIDE TEMPORARY BODY ARTIST SERVICES IN CONJUNCTION WITH AND PURSUANT TO A LICENSED BODY ART SPECIAL EVENT, A LICENSED BODY ART ESTABLISHMENT OR A TEMPORARY BODY ART ESTABLISHMENT. THE EFFECTIVE DATE(S) OF ANY PERMIT ISSUED BY THE HEALTH OFFICER SHALL COINCIDE WITH THE BODY ART SPECIAL EVENT BUSINESS LICENSE TIME FRAME AND WILL BE VALID FOR NOT MORE THAN SEVEN CONSECUTIVE DAYS, OR PORTION THEREOF. THE HEALTH OFFICER SHALL NOT ISSUE MORE THAN FOUR PERMITS FOR THE SAME APPLICANT PER CALENDAR YEAR.

"BODY ART SPECIAL EVENT" MEANS A CONVENTION, TRADE SHOW, EDUCATIONAL SHOW, PRODUCT DEMONSTRATION OR SIMILAR ACTIVITY INVOLVING BODY ART AND/OR BODY ART ESTABLISHMENT ACTIVITIES, WHETHER OR NOT FOR PROFIT OR FOR PRIVATE/PUBLIC ATTENDANCE, IN WHICH THE TIME FRAME OF THE SPECIAL EVENT DOES NOT EXCEED SEVEN CONSECUTIVE DAYS, OR A PORTION THEREOF.

**5.68.032 BODY ART SPECIAL EVENT LICENSE REQUIRED;
LICENSE AND OPERATIONAL PROVISIONS.**

A. IT IS UNLAWFUL FOR ANY PERSON TO CONDUCT ACTIVITIES DEFINED AS A BODY ART SPECIAL EVENT WITHIN THE CITY WITHOUT FIRST OBTAINING A BUSINESS LICENSE FROM THE CITY CLERK AND A HEALTH LICENSE FOR

THE EVENT FROM THE CITY-COUNTY HEALTH DEPARTMENT. APPLICATION FOR A HEALTH LICENSE MUST BE SUBMITTED TO THE CITY-COUNTY HEALTH DEPARTMENT ON FORMS PROVIDED BY THE HEALTH OFFICER. APPLICATION FOR A BUSINESS LICENSE MUST BE SUBMITTED TO THE OFFICE OF CITY CLERK ON FORMS PROVIDED BY THE CITY CLERK, AND CONTAIN THE FOLLOWING INFORMATION:

1. IF FILING AS AN INDIVIDUAL, APPLICANT'S FULL NAME, RESIDENTIAL STREET ADDRESS, MAILING ADDRESS, TELEPHONE NUMBER AND PROOF THAT THE APPLICANT IS AT LEAST THE AGE OF MAJORITY.

2. IF APPLICANT IS FILING AS A CORPORATION, FIRM, PARTNERSHIP, LIMITED LIABILITY COMPANY, OR OTHER FORM OF LEGAL BUSINESS ENTITY, PROOF OF AUTHORITY TO CONDUCT BUSINESS WITHIN THE STATE OF WYOMING.

3. PURPOSE FOR WHICH THE LICENSE IS BEING REQUESTED AND SPECIFIC ADDRESS AND LOCATION WHERE THE PROPOSED BODY ART SPECIAL EVENT WILL BE HELD, DATE(S) OF THE EVENT AND EVENT HOURS.

4. THE NAME, ADDRESS AND TELEPHONE NUMBER OF THE INDIVIDUAL WHO WILL BE THE APPLICANT'S COMMUNICATION CONTACT FOR THE SPECIAL EVENT.

5. THE NAMES, ADDRESSES AND TELEPHONE NUMBERS OF EACH BODY ARTIST, GUEST BODY ARTIST AND/OR OTHER VENDORS WHO HAVE BEEN APPROVED BY THE APPLICANT TO PARTICIPATE IN OR PROVIDE BODY ARTIST SERVICES DURING THE SPECIAL EVENT.

a. EACH GUEST BODY ARTIST PROVIDING SERVICES AT THE SPECIAL EVENT, WHETHER OR NOT FOR PROFIT, MUST OBTAIN A PERMIT FROM THE HEALTH OFFICER PRIOR TO OFFERING SERVICES AT THE EVENT. THE LICENSEE SHALL BE RESPONSIBLE FOR ALLOWING ONLY THOSE PERMITTED GUEST BODY ARTISTS, OR THOSE BODY ARTISTS CURRENTLY HOLDING AN ACTIVE BODY ARTIST ANNUAL PERMIT ISSUED BY THE CITY CLERK, TO PROVIDE BODY ART SERVICES AT THE EVENT.

b. THE LICENSEE SHALL REQUIRE THAT EACH BODY ARTIST PROVIDING BODY ART SERVICES AT THE SPECIAL EVENT CONFORMS WITH PROPER IDENTIFICATION PROCEDURES TO ENSURE INDIVIDUALS RECEIVING BODY ART SERVICES ARE AT LEAST THE AGE OF 18 YEARS AND, IF APPLICABLE, THAT PROVISIONS OF WYO. STAT. SECTION 14-3-107 ARE MET.

6. IF A SPECIAL EVENT IS PROPOSED TO BE HELD ON CITY-OWNED PROPERTY, PROOF OF GENERAL LIABILITY COVERAGE MUST BE SUBMITTED IN AN AMOUNT DETERMINED AND APPROVED BY THE CITY RISK MANAGER.

THE CITY MUST BE NAMED AS AN ADDITIONAL INSURED AS WELL AS A CERTIFICATE HOLDER ON THE CERTIFICATE OF COVERAGE DOCUMENT.

B. APPLICATION FOR A BODY ART SPECIAL EVENT LICENSE MUST BE SUBMITTED TO THE CITY CLERK NOT LATER THAN THIRTY (30) DAYS PRIOR TO THE PROPOSED SPECIAL EVENT. EACH LICENSE ISSUED SHALL BE EFFECTIVE FOR NOT MORE THAN SEVEN CONSECUTIVE DAYS, OR PORTION THEREOF. THE CITY CLERK, CITY-COUNTY HEALTH OFFICER AND CHIEF OF POLICE, OR DESIGNEE, MAY REQUEST ANY SUPPORTING INFORMATION OR DOCUMENTATION AFFILIATED WITH THE APPLICATION FOR A SPECIAL EVENT LICENSE. THE HEALTH OFFICER, CHIEF OF POLICE AND MAYOR RESERVE THE RIGHT TO DENY APPROVAL OF ANY APPLICATION FOR A BODY ART SPECIAL EVENT BUSINESS LICENSE BASED UPON THE HEALTH, SAFETY AND WELFARE OF THE PUBLIC.

1. ANY APPLICABLE PROVISIONS OF CHAPTER 5.68 OF CITY CODE, AS DETERMINED AND REQUIRED BY THE HEALTH OFFICER, MUST BE MET BY LICENSEES.

C. PROVISIONS OF SECTION 5.68.050, HEALTH AND SANITARY REQUIREMENTS, OF THIS CHAPTER MUST BE MET BY LICENSEES AND BODY ARTISTS WITH THE FOLLOWING EXCEPTIONS:

1. THE ROOM/AREA IN WHICH BODY ART IS PERFORMED AT A SPECIAL EVENT MAY UTILIZE TEMPORARY POLE AND OPAQUE FABRIC PANELS TO DESIGNATE WORK SPACE CUBICLES. ANY FLOORING WHICH DOES NOT MEET REQUIREMENTS SET FORTH IN SECTION 5.68.050 MUST BE COVERED WITH DURABLE PLASTIC SHEETING AS APPROVED BY THE HEALTH OFFICER.

2. ONLY SINGLE USE ITEMS SHALL BE ALLOWED AND USED BY BODY ARTISTS AND EACH ARTIST SHALL PROVIDE ENOUGH STERILIZED EQUIPMENT TO PERFORM ANTICIPATED BODY ART PROCEDURES DURING THE SPECIAL EVENT.

3. PURSUANT TO APPROVAL OF THE HEALTH OFFICER, READILY ACCESSIBLE HANDSINKS MUST BE PROVIDED FOR BODY ARTIST OPERATIONS AND SINKS SHALL BE AVAILABLE TO SERVE A MAXIMUM OF FIFTEEN (15) BODY ARTISTS PER HAND SINK.

D. FOLLOWING CLOSURE OF EACH SPECIAL EVENT, LICENSEES SHALL SUBMIT LEGIBLE CLIENT REGISTERS TO THE HEALTH OFFICER, OR A PHOTOCOPY OR ELECTRONIC COPY OF THE REGISTERS, THAT HAVE BEEN MAINTAINED BY EACH BODY ARTIST AND/OR GUEST BODY ARTIST PROVIDING SERVICES AT THE EVENT. THE HEALTH OFFICER SHALL DETERMINE AND APPROVE THE INFORMATION TO BE CONTAINED IN THE CLIENT REGISTER PRIOR TO THE START OF THE SPECIAL EVENT.

E. APPLICANTS MUST AGREE IN WRITING TO: AUTHORIZE THE CITY, ITS AGENTS AND EMPLOYEES TO SEEK ANY ADDITIONAL INFORMATION RELATIVE TO THE APPLICATION AND TO COMPLY FULLY WITH THE RULES AND REGULATIONS GOVERNING THE LICENSE REQUESTED; VERIFY THAT INFORMATION CONTAINED IN THE APPLICATION IS TRUE AND CORRECT, AND RELEASE, INDEMNIFY AND HOLD HARMLESS THE CITY, ITS AGENTS AND EMPLOYEES FROM ANY AND ALL CLAIMS ARISING AS A RESULT OF THE SPECIAL EVENT.

F. BODY ART SPECIAL EVENT LICENSES ARE NOT RENEWABLE. EACH SPECIAL EVENT REQUIRES A SEPARATE APPLICATION AND APPROVAL PROCESS.

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(S E A L)

RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

Publish: Wyoming Tribune-Eagle